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Chapter 1 - Purpose and Background

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## A. Purpose

The Immigration and Nationality Act (INA) provides a nonimmigrant classification for participants coming temporarily to the United States to participate “in an international cultural exchange program approved by the Secretary of Homeland Security for the purpose of providing practical training, employment, and the sharing of the history, culture, and traditions of the country of the alien’s nationality and who will be employed under the same wages and working conditions as domestic workers.”<sup>[1]</sup>

## B. Background

In 1990, Congress created new immigration classification for cultural visitors, commonly known as the “Q” visa category.<sup>[2]</sup> The implementing regulation establishes the process by which DHS evaluates both the proposed international cultural exchange program and the prospective Q nonimmigrants.<sup>[3]</sup> The cultural exchange program must have a cultural component that “is an essential and integral part of the international cultural exchange visitor’s employment or training.”<sup>[4]</sup> The Q nonimmigrants must meet age, qualifications for the job, and communication requirements. Petitions seeking Q-1 status may be filed for up to 25 named participants.<sup>[5]</sup>

## C. Legal Authorities

- [INA 101\(a\)\(15\)\(Q\)](#) – Definition of Q nonimmigrant classification
- [8 CFR 214.2\(q\)](#) – Cultural visitors



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# Footnotes

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[^1] See [INA 101\(a\)\(15\)\(Q\)](#).

[^2] See [INA 101\(a\)\(15\)\(Q\)](#).

[^3] See [8 CFR 214.2\(q\)](#).

[^4] See [8 CFR 214.2\(q\)\(3\)\(iii\)\(B\)](#).

[^5] See [8 CFR 214.2\(q\)\(5\)\(ii\)](#).

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